

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

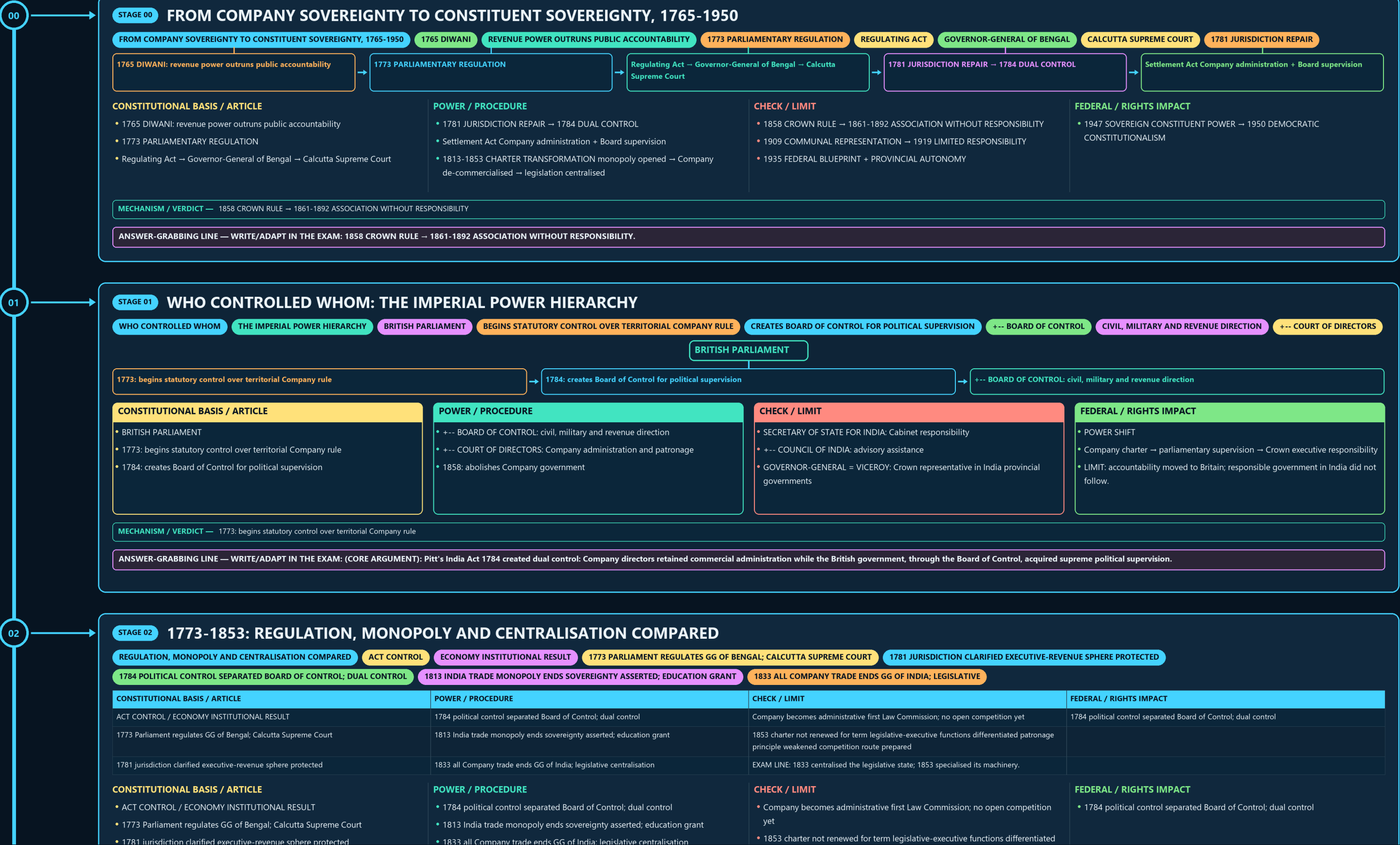
FROM COMPANY SOVEREIGNTY TO → WHO CONTROLLED WHOM: THE → 1773-1853: REGULATION, MONOPOLY AND → REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919 → THE 1935 CONSTITUTIONAL MACHINE → 1935 INHERITANCE: RETAINED, TRANSFORMED

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g12 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

ACT CONTROL / ECONOMY INSTITUTIONAL RESULT

1773 Parliament regulates GG of Bengal; Calcutta Supreme Court

1781 jurisdiction clarified executive-revenue sphere protected

1784 political control separated Board of Control; dual control

1813 India trade monopoly ends sovereignty asserted; education grant

1833 all Company trade ends GG of India; legislative centralisation

Company becomes administrative first Law Commission; no open competition yet

1853 charter not renewed for term legislative-executive functions differentiated patronage principle weakened competition route prepared

EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

1784 political control separated Board of Control; dual control

CONSTITUTIONAL BASIS / ARTICLE

• ACT CONTROL / ECONOMY INSTITUTIONAL RESULT

• 1773 Parliament regulates GG of Bengal; Calcutta Supreme Court

• 1781 jurisdiction clarified executive-revenue sphere protected

POWER / PROCEDURE

• 1784 political control separated Board of Control; dual control

• 1813 India trade monopoly ends sovereignty asserted; education grant

• 1833 all Company trade ends GG of India; legislative centralisation

CHECK / LIMIT

• Company becomes administrative first Law Commission; no open competition yet

• 1853 charter not renewed for term legislative-executive functions differentiated patronage principle weakened competition route prepared

• EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

FEDERAL / RIGHTS IMPACT

• 1784 political control separated Board of Control; dual control

MECHANISM / VERDICT — 1833 centralised the legislative state; 1853 specialised its machinery.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1833 centralised the legislative state; 1853 specialised its machinery.

04

STAGE 03

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919

NOMINATION NOMINATED INDIAN NON-OFFICIALS; PORTFOLIO SYSTEM RECOGNISED LEGISLATIVE DECENTRALISATION

SCRUTINY BUDGET DISCUSSION AND QUESTIONS INDIRECT-ELECTION ELEMENT; OFFICIAL MAJORITIES

REPRESENTATION SEGMENTED SEPARATE ELECTORATES FOR MUSLIMS LARGER COUNCILS; INDIAN

RESPONSIBILITY DIVIDED PROVINCIAL DYARCHY

RESERVED VERSUS TRANSFERRED SUBJECTS CENTRAL BICAMERALISM; DIRECT ELECTIONS AND

1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils

Indian on Viceroy's Executive Council executive still not responsible to legislature

1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism

CONSTITUTIONAL BASIS / ARTICLE

• 1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

• 1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

POWER / PROCEDURE

• 1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils

• Indian on Viceroy's Executive Council executive still not responsible to legislature

CHECK / LIMIT

• 1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism

• direct elections and limited franchise ministers lacked decisive coercive and fiscal levers

FEDERAL / RIGHTS IMPACT

• 1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

• 1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

MECHANISM / VERDICT — (CORE ARGUMENT): The Councils Acts 1861 and 1892 moved from nominated association to limited scrutiny, not to responsible government.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CORE ARGUMENT): The Councils Acts 1861 and 1892 moved from nominated association to limited scrutiny, not to responsible government.

05

STAGE 04

THE 1935 CONSTITUTIONAL MACHINE: PROMISE AND SAFEGUARDS

THE 1935 CONSTITUTIONAL MACHINE

PROMISE AND SAFEGUARDS

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION

PROVINCES + PRINCELY STATES

+++ NEVER COMMENCED BECAUSE REQUIRED PRINCELY ACCESSION FAILED

LEGISLATIVE DISTRIBUTION

+++ FEDERAL LIST 59

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION: provinces + princely states

+++ never commenced because required princely accession failed

LEGISLATIVE DISTRIBUTION

CONSTITUTIONAL BASIS / ARTICLE

• GOVERNMENT OF INDIA ACT 1935

• ALL-INDIA FEDERATION: provinces + princely states

• +++ never commenced because required princely accession failed

• LEGISLATIVE DISTRIBUTION

POWER / PROCEDURE

• +++ Federal List 59

• Provincial List 54

• Concurrent List 36

• +++ residuary allocation vested in Governor-General

CHECK / LIMIT

• +++ dyarchy abolished → provincial autonomy

• +++ ministers responsible to provincial legislatures

• CENTRE: proposed dyarchy; not brought into operation

• INSTITUTIONS: Federal Court 1937

FEDERAL / RIGHTS IMPACT

• bicameral provinces

• SAFEGUARDS: discretion, special responsibilities and reserved powers

• VERDICT: autonomy was enlarged inside an imperial veto structure.

MECHANISM / VERDICT — VERDICT: autonomy was enlarged inside an imperial veto structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: autonomy was enlarged inside an imperial veto structure.

05

STAGE 05

1935 INHERITANCE: RETAINED, TRANSFORMED, REJECTED

1935 INHERITANCE

RETAINED, TRANSFORMED, REJECTED

1935 DEVICE 1950 TREATMENT

THREE LEGISLATIVE LISTS RETAINED; REDISTRIBUTED UNDER SEVENTH SCHEDULE

FEDERAL COURT TRANSFORMED INTO SUPREME COURT WITH WIDER REVIEW

PROVINCIAL AUTONOMY RETAINED AS ELECTED STATE GOVERNMENT

PUBLIC SERVICE COMMS. CONSTITUTIONALISED FOR UNION AND STATES

EMERGENCY MACHINERY RETAINED BUT SUBJECTED TO CONSTITUTIONAL PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

05

STAGE 05 1935 INHERITANCE: RETAINED, TRANSFORMED, REJECTED

1935 INHERITANCE RETAINED, TRANSFORMED, REJECTED 1935 DEVICE 1950 TREATMENT THREE LEGISLATIVE LISTS RETAINED; REDISTRIBUTED UNDER SEVENTH SCHEDULE FEDERAL COURT TRANSFORMED INTO SUPREME COURT WITH WIDER REVIEW

PROVINCIAL AUTONOMY RETAINED AS ELECTED STATE GOVERNMENT PUBLIC SERVICE COMMS. CONSTITUTIONALISED FOR UNION AND STATES EMERGENCY MACHINERY RETAINED BUT SUBJECTED TO CONSTITUTIONAL PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
1935 DEVICE 1950 TREATMENT	Provincial autonomy retained as elected State government	Governor's office retained; democratic responsibility replaces imperial command	universal adult suffrage ruler safeguards → enforceable rights and judicial review
Three legislative lists retained; redistributed under Seventh Schedule	Public Service Comms. constitutionalised for Union and States	All-India Services retained as an integrating administrative instrument	
Federal Court transformed into Supreme Court with wider review	Emergency machinery retained but subjected to constitutional procedure	REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty communal electorates → common electoral citizenship limited franchise →	
CONSTITUTIONAL BASIS / ARTICLE 1935 DEVICE 1950 TREATMENT - Three legislative lists retained; redistributed under Seventh Schedule - Federal Court transformed into Supreme Court with wider review	POWER / PROCEDURE - Provincial autonomy retained as elected State government - Public Service Comms. constitutionalised for Union and States - Emergency machinery retained but subjected to constitutional procedure	CHECK / LIMIT - Governor's office retained; democratic responsibility replaces imperial command - All-India Services retained as an integrating administrative instrument - REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty communal electorates → common electoral citizenship limited franchise →	FEDERAL / RIGHTS IMPACT universal adult suffrage ruler safeguards → enforceable rights and judicial review

MECHANISM / VERDICT — (CONTINUITY LINE): The Constitution retained and transformed colonial machinery - lists, Governors, courts and services - while rejecting communal electorates, restricted franchise and imperial supremacy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CONTINUITY LINE): The Constitution retained and transformed colonial machinery - lists, Governors, courts and services - while rejecting communal electorates, restricted franchise and imperial supremacy.

06

STAGE 06 1947 BRIDGE: DOMINION LEGALITY TO REPUBLICAN AUTHORITY

1947 BRIDGE DOMINION LEGALITY TO REPUBLICAN AUTHORITY INDIAN INDEPENDENCE ACT 1947 BRITISH RULE ENDS; INDIA AND PAKISTAN BECOME DOMINIONS BRITISH PARLIAMENTARY AUTHORITY OVER THE NEW DOMINIONS ENDS PRINCELY-STATE

CONSTITUENT ASSEMBLY BECOMES SOVEREIGN CONSTITUTION-MAKER ASSEMBLY ALSO ACTS AS DOMINION LEGISLATURE TRANSITIONAL GOVERNMENT EXISTING LAW AND ADMINISTRATION CONTINUE UNLESS ALTERED

INDIAN INDEPENDENCE ACT 1947	British rule ends; India and Pakistan become Dominions	British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic	Constituent Assembly becomes sovereign constitution-maker	Assembly also acts as Dominion legislature
CONSTITUTIONAL BASIS / ARTICLE - INDIAN INDEPENDENCE ACT 1947 - British rule ends; India and Pakistan become Dominions - British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic absorption	POWER / PROCEDURE - Constituent Assembly becomes sovereign constitution-maker - Assembly also acts as Dominion legislature - TRANSITIONAL GOVERNMENT existing law and administration continue unless altered	CHECK / LIMIT 26 NOV 1949: Constitution adopted 24 JAN 1950: members sign 26 JAN 1950: Constitution commences; republic replaces dominion status	FEDERAL / RIGHTS IMPACT BRIDGE: legal continuity prevented a vacuum; constituent power changed authority's source.	

MECHANISM / VERDICT — British rule ends; India and Pakistan become Dominions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: British rule ends; India and Pakistan become Dominions.

07

STAGE 07 COLONIAL REFORM: OFFICIAL MOTIVE VERSUS INDIAN PRESSURE

COLONIAL REFORM OFFICIAL MOTIVE VERSUS INDIAN PRESSURE OFFICIAL PROBLEM IMPERIAL RESPONSE COMPANY ABUSE FISCAL CRISIS PARLIAMENTARY REGULATION, NOT SELF-GOVERNMENT ADMINISTRATIVE OVERLOAD CENTRALISATION INDIAN COUNTER-PRESSURE ASSOCIATIONS CONGRESS DEMANDS

HOME RULE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- OFFICIAL PROBLEM IMPERIAL RESPONSE - Company abuse / fiscal crisis parliamentary regulation, not self-government administrative overload centralisation, codification, specialised services nationalist representation councils,	- limited elections, controlled devolution mass political pressure graded responsibility with vetoes and safeguards communal bargaining separate electorates and - group arrangements	- INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation - British policy designed controlled adaptation to preserve authority.	- Indian politics converted concessions into platforms for further claims. - Reform was neither a unilateral gift nor a linear march to democracy.

MECHANISM / VERDICT — INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation.

Company rule, administrative centralisation, codification, specialised services
nationalist representation councils,

electorates and
• group arrangements

• British policy designed controlled adaptation to preserve authority.

MECHANISM / VERDICT — INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation.

08

STAGE 08

HISTORICAL-BACKGROUND CLOSE-OPTION CONTROL BOARD

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CLAIM TO TEST EXACT CONTROL

1773 CREATED GOVERNOR-GENERAL OF INDIA NO

GOVERNOR-GENERAL OF BENGAL

1784 TRANSFERRED INDIA TO CROWN RULE NO

DUAL CONTROL; CROWN RULE BEGINS IN 1858

1813 ENDED EVERY COMPANY MONOPOLY NO

TEA AND CHINA TRADE EXCEPTIONS REMAINED

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CLAIM TO TEST EXACT CONTROL	1813 ended every Company monopoly No: tea and China trade exceptions remained	1892 made executive legislature-dependent No: scrutiny without responsibility	1935 federation operated No: federal part never commenced
1773 created Governor-General of India No: Governor-General of Bengal	1833 introduced open civil-service exam No: principle opened; competition came later	1909 began responsible government No: representation widened, executive insulated	1935 created RBI directly RBI Act 1934; operations began in 1935
1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858	1861 introduced elected representation No: nominated Indian non-officials	1919 put dyarchy at Centre No: provincial dyarchy	1947 automatically integrated princes No: suzerainty lapsed; integration followed

CONSTITUTIONAL BASIS / ARTICLE

CLAIM TO TEST EXACT CONTROL

1773 created Governor-General of India No: Governor-General of Bengal

1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858

POWER / PROCEDURE

1813 ended every Company monopoly No: tea and China trade exceptions remained

1833 introduced open civil-service exam No: principle opened; competition came later

1861 introduced elected representation No: nominated Indian non-officials

CHECK / LIMIT

1892 made executive legislature-dependent No: scrutiny without responsibility

1909 began responsible government No: representation widened, executive insulated

1919 put dyarchy at Centre No: provincial dyarchy

FEDERAL / RIGHTS IMPACT

1935 federation operated No: federal part never commenced

1935 created RBI directly RBI Act 1934; operations began in 1935

1947 automatically integrated princes No: suzerainty lapsed; integration followed

MECHANISM / VERDICT — 1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CORE ARGUMENT): The Government of India Act 1858 replaced dual control with direct Crown responsibility, but centralised imperial accountability without Indian popular responsibility.

09

STAGE 09

EXACT 10/15-MARK ARCHITECTURE: EVOLUTION INTO THE 1950 CONSTITUTION

EXACT 10/15-MARK ARCHITECTURE

EVOLUTION INTO THE 1950 CONSTITUTION

10 MARKS

150 WORDS

1. THESIS

COLONIAL STATUTES BUILT MACHINERY; 1950 CHANGED ITS SOVEREIGN BASIS.

2. THREE PHASES

1773-1858 CONTROL; 1861-1919 REPRESENTATION; 1935 BLUEPRINT.

10 MARKS / 150 WORDS → 1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis. → 2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint. → 3. Evidence: one exact Act-feature pair from each phase. → 4. Pivot: 1947 transferred constituent authority and preserved legal continuity.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
10 MARKS / 150 WORDS 1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis. 2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint. 3. Evidence: one exact Act-feature pair from each phase.	4. Pivot: 1947 transferred constituent authority and preserved legal continuity. 5. Verdict: structural continuity plus democratic rupture. 15 MARKS / 250 WORDS 1. Open with Diwani power-accountability mismatch.	2. Trace control: 1773 → 1784 → 1858. 3. Trace participation: 1861 → 1892 → 1909 → 1919. 4. Explain 1935 lists, autonomy, institutions and safeguards. 5. Compare retained devices with rejected imperial principles.	6. Add Indian pressure versus British controlled adaptation. 7. Conclude: inheritance supplied instruments, not constitutional legitimacy.

MECHANISM / VERDICT — 5. Verdict: structural continuity plus democratic rupture.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CONTINUITY LINE): Across 1773-1947, institutions evolved from corporate control to statutory administration and limited accountability; constitutional continuity lies in structures, not in democratic legitimacy.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

0. FRAME

PART A — COMPANY RULE (1773–1858)

PART B — CROWN RULE (1858–1947)

QUICK "FIRSTS" TABLE (PRELIMS GOLD)

UPSC TRAPS

WHY IT MATTERS

MAINS ANGLES

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
0. Frame PART A — COMPANY RULE (1773–1858) PART B — CROWN RULE (1858–1947) Quick "FIRSTS" table (Prelims gold)	UPSC Traps Why it matters / relevance Mains angles Advanced synthesis — criticisms, replies and final evaluation	NOT: Regulating Act created GG of India → GG of Bengal ; GG of India came with Charter Act 1833 . NOT: 1853 abolished Company → Company abolished by GoI Act 1858 . NOT: Morley-Minto (1909) introduced dyarchy → dyarchy = 1919 ; 1909 = communal electorate. NOT: 1919 introduced provincial autonomy → that's 1935 ; 1919 = dyarchy.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.